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#18 - CLYDE WEBB, JR. vs THE TJX COMPANIES, INC.

DEMURRER AND MOTION TO STRIKE

Plaintiff filed the First Amended Complaint on May 29, 2026, alleging causes of action for false imprisonment, malicious prosecution, defamation, intentional infliction of emotional distress, and negligence. Defendant Marshalls of CA, LLC demurs, and seeks to strike paragraph 77, the punitive-damages allegations, and the punitive-damages prayer.

Plaintiff alleges he entered the Marshalls store carrying a bag containing items intended for return, told a uniformed security guard he had a return, attempted to exchange a gray Cable & Gage shirt, purchased two shirts for approximately \$9.88, and received a sales receipt. (FAC, ¶¶ 14-30.)

Plaintiff further alleges that, after he exited the store, a person later identified as a police officer grabbed him from behind while a store manager and several plainclothes individuals converged on him, and the store manager repeatedly pointed at Plaintiff and loudly yelled words to the effect of, "You're a thief," in the presence of approximately twenty-five customers and bystanders. (FAC, ¶¶ 31-38.)

Plaintiff also alleges no stolen merchandise was recovered from his person or bag, he was transported to jail and incarcerated for approximately eight hours, criminal proceedings were later initiated, and the criminal case was dismissed in approximately November 2025. (FAC, ¶¶ 40-44, 49-60.)

Tentative Ruling

The demurrer is overruled as to the first, fourth, and fifth causes of action. The demurrer is sustained as to the second and third cause of action. The motion to strike is granted as to the punitive damages allegations and prayer. The motion is denied as moot as to paragraph 77.

As Plaintiff has not opposed either motion or demonstrated amendment can cure the defects, leave to amend is denied. Defendant is to file an answer to the FAC within 10 days, or by August 10, 2026.

Demurrer: Legal Authority and Analysis

A general demurrer may be taken to a complaint where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code of Civ. Proc., § 430.10(e).) A demurrer for sufficiency tests whether the complaint states a cause of action.

(Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, supra, at 747.)

First Cause of Action — False Imprisonment

“The elements of a tortious claim of false imprisonment are: (1) the nonconsensual, intentional confinement of a person, (2) without lawful privilege, and (3) for an appreciable period of time, however brief.” (Jon Davler, Inc. v. Arch Ins. Co. (2014) 29 Cal.App.4th 1025, 1034.) “Confinement” means restraining a person from leaving a particular place by threat of force or arrest, physical barriers, or means of unreasonable duress. (Snyder v. Evangelical Orthodox Church (1989) 216 Cal.App.3d 297, 303; Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715.)

The FAC alleges Defendants intentionally caused Plaintiff to be retained, detained, searched, transported to jail, and incarcerated, and that Defendants lacked reasonable grounds and lawful justification for causing the detention and arrest. The FAC alleges that Defendant intended to confine Plaintiff by alleging the intent by Defendant to restrain Plaintiff’s freedom of movement. The FAC also alleges that Plaintiff was confined or restricted from leaving a particular place for an appreciable period—considering the fact Plaintiff was ultimately placed into a police vehicle. These allegations are sufficient at the pleading stage. The demurrer to the first cause of action is overruled.

Second Cause of Action — Malicious Prosecution

To establish a cause of action for malicious prosecution of either a criminal or civil proceeding, a plaintiff must demonstrate that the prior action: (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in the plaintiff’s favor, (2) was brought without probable cause, and (3) was initiated with malice. (Robbins v. Blecher (1997) 52 Cal. App. 4th 886, 887–88, citing Eells v. Rosenblum (1995) 36 Cal.App.4th 1848.)

The FAC alleges “Defendants initiated, encouraged, procured, instigated, and/or substantially contributed” to the criminal proceedings, that the proceedings terminated in Plaintiff’s favor, that Defendants lacked probable cause to accuse Plaintiff of theft, and that Defendants acted with malice and conscious disregard for Plaintiff’s rights. (FAC, ¶¶ 70-77.) These allegations plead the result of the criminal matter, but the FAC does not set out specific nonconclusory facts showing how Defendant Marshalls did more than report suspected conduct before law enforcement and prosecutors acted, and the malice allegations remain conclusory. The demurrer to the second cause of action is sustained.

Third Cause of Action — Defamation

The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. (See Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1369.) The FAC alleges the store manager publicly accused Plaintiff of being a thief, communicated that accusation to customers and bystanders, and made a false statement that injured Plaintiff’s reputation and standing in the community. However, the falsity of the statement is undermined by Plaintiff’s arrest and the initial prosecution. The demurrer to the third cause of action is sustained.

Fourth Cause of Action — Intentional Infliction of Emotional Distress

The elements of an intentional infliction of emotional distress cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (See Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 780; Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009.) To satisfy the element of extreme and

outrageous conduct, defendant's conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (Moncada, supra, 221 Cal.App.4th at p. 780 [quoting *Trerice v. Blue Cross of California* (1989) 209 Cal.App.3d 878, 883].)

The FAC alleges a public accusation of theft, physical restraint, arrest, incarceration, prosecution, and severe emotional distress including anxiety, panic, humiliation, embarrassment, fear, and mental suffering. Assuming those allegations are true, the FAC adequately pleads outrageous conduct and resulting severe emotional distress for pleading purposes. The demurrer to the fourth cause of action is overruled.

Fifth Cause of Action — Negligence

The elements of negligence are: (1) a duty to exercise ordinary care; (2) breach of that duty; (3) causation; and (4) damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) The FAC alleges Defendants owed Plaintiff a duty to exercise reasonable care in investigating suspected theft, reporting suspected criminal conduct, detaining customers, and communicating information to law enforcement, and that Defendants breached that duty by falsely accusing Plaintiff and providing inaccurate information that caused his detention and prosecution. (FAC, ¶¶ 95-96.) At this stage, those allegations are sufficient to state a negligence claim. The demurrer to the fifth cause of action is overruled.

Motion to Strike: Legal Authority and Analysis

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (*Id.*, at § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (*Id.*, at § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (*Id.*, at § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.*, at § 437.)

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Clear and convincing evidence requires proof making the existence of a fact highly probable— falls between the "more likely than not" standard commonly referred to as a preponderance of the evidence and the more rigorous standard of proof beyond a reasonable doubt." (*Conservatorship of O.B.* (2020) 9 Cal.5th 989, 995.)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Under the statute, malice does not require actual intent to harm. Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. (*Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1299.) "Despicable" is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.' (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

A plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud, or malice. To wit, there is a heightened pleading requirement regarding a claim for punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

The motion to strike seeks to strike paragraph 77, the punitive-damages section at paragraphs 100 through 108, and the punitive-damages prayer. The FAC alleges Defendants acted with malice, oppression, and conscious disregard, and alleges

on information and belief that managerial employees participated in, authorized, approved, ratified, and/or consciously disregarded the conduct at issue. (FAC, ¶¶ 101-108.) Those allegations are largely conclusory. The FAC does not plead supporting facts for punitive damages against this corporate defendant. The motion to strike is therefore granted as to the punitive-damages allegations in paragraphs 100 through 108 and the punitive-damages prayer.

For the reasons above in which the Court sustained the demurrer to the claim for malicious prosecution, the motion to strike paragraph 77 is granted.

Moving Party is to give notice.